

ACCESS CONTROL ON LOUDOUN COUNTY PUBLIC SCHOOLS (LCPS) PROPERTY

A. Building Safety. Building administrators are responsible for following all established procedures for admitting only authorized individuals to LCPS facilities, as defined in Policy 6310, Facility Use. This shall include the following visitor management protocols:

1. All exterior doors and gates must always remain locked and closed. Unlocked doors or open doors or gates during school events are only permitted when a staff member or other authorized personnel is positioned at the entryway to monitor access.

2. All interior classroom doors must be locked and closed at all times even when students are not in the buildings. LCPS-issued magnets may be utilized for ease of access when such use is aligned with an instructional design that requires areas outside of the classroom to be utilized or during other special circumstances but must be removed in the event of a Hold or Lockdown.

3. Unless there is a health or safety emergency, all visitors should either have an appointment to access LCPS buildings and must state their purpose for visiting a school/facility prior to being permitted to enter. Any visitor who is not identifiable to school or building staff will be expected to present either a valid government-issued photo ID or other verifiable forms of identification prior to entering an LCPS school/facility. Any contractor is considered a visitor and is subject to the requirements of this regulation.

4. In accordance with Virginia law, visitors may be asked to momentarily remove any facial coverings to confirm their identity. Visitors with religious concerns should be offered the opportunity to remove their face covering with an LCPS official of a requested gender.

5. Visitors shall be asked to remain outside the school/facility until identification and any information related to the visit is verified.

6. Prior to allowing any visitor admittance, staff should visually scan the entry area for bulky clothing, oddly shaped bags and other potential visitors. In the event staff determines that a visitor poses a potential safety threat, the visitor should not be admitted, and law enforcement should be contacted immediately.

7. The contracted-visitor management system utilized to screen for sex offenders must be utilized for all visitors that will have access to students.

8. Confirming the identification and parent/guardian status is required before releasing any LCPS student to a parent/guardian.

9. LCPS key cards (ID Badges) and alarm codes are individual-specific and

ACCESS CONTROL ON LOUDOUN COUNTY PUBLIC SCHOOLS (LCPS) PROPERTY

shall not be shared with students or any other individuals.

10. School-based administrators shall assign a team of staff members to be present at the school entrance during morning arrivals and afternoon departures.

11. LCPS personnel must wear their LCPS photo-ID badge while on LCPS property. Badges must be worn on the outermost garment and remain clearly visible.

B. Prohibited Conduct. In order to ensure the effective administration of the schools and to safeguard students and employees, the following conduct is prohibited:

1. Trespass on any LCPS facility/property.
2. Failure or refusal to leave LCPS facilities/property after being requested to do so.
3. Threats of bodily harm directed to any student, employee or other individuals lawfully on/within any LCPS property/facility.
4. Threats of bodily harm directed to any student or employee, including in person, by telephone, or electronic means.
5. Unwelcome physical contact or actual bodily harm caused to a student, employee or other individuals lawfully on/within any LCPS property/facility.
6. Damage or defacement to any building, furnishing, statue, monument, memorial, tree, shrub, grass or landscaping on LCPS property.
7. Disturbing or otherwise preventing the orderly conduct of LCPS operations, activities or classes either being conducted on/within any LCPS property/facility.
8. Unauthorized possession of a firearm on any LCPS facility/property, within and beyond school zones. In accordance with Virginia Code § 22.1-131.1, the School Board deems any non-school zone building or property that it owns or leases where employees of the School Board are regularly present for the purpose of performing their official duties as a gun-free zone. This regulation thereby prohibits any individual from knowingly purchasing, possessing, transferring, carrying, storing, or transporting firearms, ammunition, or components or combination thereof while such individual is upon such property, subject to the provisions and exemptions of Virginia Code § 22.1-131.1.
9. Failure to otherwise comply with LCPS policy or applicable Virginia law on any LCPS property/facility.

ACCESS CONTROL ON LOUDOUN COUNTY PUBLIC SCHOOLS (LCPS) PROPERTY

C. Administrative Action. When an individual becomes involved in one of the offenses noted above, the building administrator may take several actions. In taking administrative action, the building administrator should consider that the individual may be the parent of an LCPS student who may otherwise, at times, have legitimate school business to conduct on/within LCPS property/facilities. If the individual is a current LCPS student who has not been suspended or expelled from an LCPS school, the administrator should consult Policy 8210, Introduction to Student Discipline and Policy and Regulation 8215, In-School Disciplinary Measures, the Student Code of Conduct, and the Student Rights and Responsibilities handbook. Administrative action may include the following:

1. Conferencing with the individual to explain the need for a safe and supportive school environment and the expectation of non-disruptive conduct.
2. Issuing the individual a warning letter summarizing the incident and disruptive behavior, any prior discussions or warnings and warning them that any further incidents may lead to the issuance of a no-trespass letter.
3. Initiating the process of issuing a no-trespass letter to individuals who are not parents of LCPS students.
4. Initiating the process of issuing a no-trespass letter to individuals who are parents/guardians of LCPS students. No-trespass letters should address the manner in which the individuals may continue to discuss legitimate school issues regarding their child(ren)—to the extent that it will not (in the administrator's judgment) create a disturbance to LCPS' operations, activities and facilities—through one or more of the following means:
 - a. Requiring advance permission prior to coming to school or accessing LCPS property/facilities.
 - b. Requiring the individual to have all communication and or visits directed to one specified LCPS staff member.
 - c. Requiring an administrator be present during any meetings with teacher or staff.
 - d. Requiring any contact with the school/administrative office be undertaken by another parent or legal guardian.
 - e. Requiring the parent to communicate only through email, letters or written communication with the school/administrative office.
 - f. Imposing any other reasonable restriction/accommodation that would permit parent communication while preserving the order and

ACCESS CONTROL ON LOUDOUN COUNTY PUBLIC SCHOOLS (LCPS) PROPERTY

safety of LCPS' operations, activities and facilities. In addition, all no-trespass letters will address a parent's/student's access to LCPS facilities/property in order to vote, access/participate in public School Board and committee meetings and to exercise religious expression at LCPS facilities hosting religious services.

5. Calling the local law enforcement or school resource officer if the building administrator believes that LCPS staff, students or others are threatened, or that help is needed to restore the order and safety of LCPS' operations, activities and facilities.

6. Initiating the Threat Assessment for the Protection of Schools process in accordance with Policy 8290, Threat Assessment for the Protection of Schools.

7. Filing a criminal complaint against the individual with the approval of the Chief of Staff and Director of School Administration, in consultation with Division Counsel.

D. Denial of Further Access. When a decision has been made to deny further access to LCPS property/facilities, whether or not criminal charges have been brought, the building administrator should, after consultation with their level director, provide written rationale for a no-trespass letter and send a draft no-trespass letter to the Division of Safety and Security, Division of School Administration (where applicable) and Division Counsel. The rationale should include the following:

1. The date(s) of the incident(s).
2. The incident(s) causing the denial of further access.
3. The applicable laws, policies and/or codes.
4. The clear directive not to enter school property/facilities.
5. The clear consequence of violating the no-trespass directive (*i.e.*, being liable for trespass).

E. Procedure for the Issuance of No-Trespass Letters. The reason to issue a no-trespass letter should be articulated in writing to the Director of Safety and Security, Director of School Administration (if the no-trespass directive pertains to a specific school) and Division Counsel. The Director of Safety and Security will review the request and, in consultation with the Director of School Administration (where applicable) and Division Counsel, the Director of Safety and Security will make a recommendation to the Chief of Staff for final approval. The following steps will be followed prior to the issuance of a no-trespass letter:

ACCESS CONTROL ON LOUDOUN COUNTY PUBLIC SCHOOLS (LCPS) PROPERTY

1. For no-trespass directives that pertain to specific schools, the respective principal, in consultation with the Department of Instruction (DOI) Level Director, will articulate in writing the need for a no-trespass letter and will send that written rationale to the Director of Safety and Security, Director of School Administration, and Division Counsel. Where principals themselves are involved in situations that may warrant no-trespass letters (e.g., a school-wide threat), the Director of Safety and Security will determine whether to endorse no-trespass letters in such instances. The Director of Safety and Security will be responsible for articulating the rationale for such no-trespass letters, as well as issuing such no-trespass letters in such situations.

2. For no-trespass directives that pertain to other LCPS property/facilities, an LCPS Administrator will articulate in writing the need for a no-trespass letter and will send that written rationale to the Director of Safety and Security and Division Counsel.

3. In addition to the rational and items in section D, the no-trespass letter will include:

- a. The timeframe during which the denied access to LCPS property/facilities is in effect;
- b. Access for voting, accessing/participating in public School Board or public committee meetings, and exercising religious freedoms at LCPS schools/facilities hosting religious services;
- c. Specific instructions for parents/guardians to contact the principal regarding any access needs to participate in their child's education on the same basis as other parents/guardians; and
- d. An explanation of the appeals process for the no-trespass letter.

4. After consulting with the Director of School Administration (if the no-trespass directive pertains to a specific school) and Division Counsel, the Director of Safety and Security will make a recommendation to the Chief of Staff, who will provide final approval for the requested no-trespass letter.

5. Once approved, the no-trespass letter will be presented to a contracted-civil service company for service of process.

6. A copy of the signed letter will be sent/served to all relevant parties. When practical, warning letters should be considered as an alternative. The procedure for issuing warning letters should follow the same steps as for no-trespass letters as

ACCESS CONTROL ON LOUDOUN COUNTY PUBLIC SCHOOLS (LCPS) PROPERTY

outlined above in E.1-E.6. If a renewal request is made to extend the period of a no-trespass directive, the Director of Safety and Security will ensure that the renewal is approved by all appropriate parties before issuing the renewal no-trespass letter. Once issued, renewal no-trespass letters will be presented to a contracted-civil service company for service of process.

F. Appeal Procedures for No-Trespass Letters. An individual who receives a no-trespass letter from a building administrator may appeal to the building administrator's immediate supervisor. Decisions of the administrator's supervisor may be appealed to the Superintendent or their designee who for the purpose of this regulation will be the

Chief of Schools. All other no-trespass letters may be appealed to the Superintendent or their designee who for the purpose of this regulation will be the Chief Operations Officer. Such administrative decisions made by the School Division are appealable to the School Board at-large and are subject to the procedure outlined in Policy 2350.

G. Notwithstanding, and subject to, the outlined procedure above, to the extent any party having responsibilities under this procedure is involved in the underlying conduct/incident that gives rise to the consideration of issuing a warning or non-trespass letter, such individual may otherwise recuse themselves from their role in the outlined procedure. In such instances of recusal, a designee may fulfill the duties of the recused individual.

H. Handling and Maintenance of No-Trespass Letters. The Division of Safety and Security will maintain a copy of all no-trespass letters that have been issued and that are in effect. Safety and Security shall maintain an up-to-date list of all individuals who have been denied access to school property via active no-trespass letters.

I. Further Enforcement/Disciplinary Action. The Division of Safety and Security will serve as the liaison in all law enforcement matters related to the implementation of this policy/regulation.

1. When an LCPS student is determined to be trespassing, the administrator of the student's assigned school will take appropriate disciplinary action in accordance with Policy 8210, Introduction to Student Discipline and Policy and Regulation 8215, In-School Disciplinary Measures. This information should be shared with the Division of Safety and Security. Safety and Security may also assist in additional safety and law enforcement coordination concerns. Absent exigent circumstances, trespassing issues associated with LCPS students should be handled at the school administrator level and not through formal no-trespass protocols.

2. When an LCPS employee is determined to be trespassing, the employee's immediate supervisor will take appropriate disciplinary action in accordance

ACCESS CONTROL ON LOUDOUN COUNTY PUBLIC SCHOOLS (LCPS) PROPERTY

with Policy 7310, Staff Discipline. This information should also be provided to Safety and Security, who can assist in any necessary law enforcement notifications and actions.

J. Media at schools/facilities. LCPS staff wishing to host the media at a LCPS school must:

1. Request permission from the school principal, and
2. Submit a request to the Division of Communications and Community Engagement via the Communications Request Form for approval and coordination.

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Cross Refs: Policy [2350](#), Appeal of Administrative Decisions, Policy [6310](#), Facility Use; Policy [6620](#), Access Control on LCPS Property; Policy [7310](#), Staff Discipline; Policy [8210](#), Introduction to Student Discipline; Policy [8215](#), In-School Disciplinary Measures; Policy [8290](#), Threat Assessment for the Protection of Schools;

Legal Refs.: §§ 18 U.S.C. § 921(a)(25), 18 U.S.C. 922(q), §§ [18.2-119](#), [18.2-308.016](#), and § [22.1-131.1](#) of the Code of Virginia